



CHAPTER lxxiv.

An Act to authorise the Cheltenham and District Light Railway Company to abandon their light railways and provide and run omnibuses to change the name of the Company and for other purposes. A.D. 1929.
[10th May 1929.]

WHEREAS the Cheltenham and District Light Railway Company (in this Act called "the Company") were incorporated by the Cheltenham and District Light Railway Order 1900 and under the powers contained in the Cheltenham and District Light Railway Orders 1900 to 1904 have constructed and work a system of light railways in the county of Gloucester :

And whereas it is expedient that the Company be authorised to abandon the said light railways and to provide and run omnibuses along the streets and roads in which the light railways of the Company are constructed and along other routes and that the provisions contained in this Act with respect thereto should be enacted :

And whereas the Company are empowered to raise share capital to the amount of one hundred and forty-eight thousand pounds and to borrow on mortgage the sum of forty-nine thousand pounds :

And whereas the Company have created and issued seventy-two thousand ordinary shares and twenty-four thousand preference shares of one pound each and such

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A.D. 1929. shares are fully paid up and the Company have raised thirty thousand pounds by the issue of debenture bonds :
 —

And whereas it is expedient that the name of the Company be changed and that the Company be empowered to raise additional capital and borrow further money for the purposes of their undertaking as provided by this Act and that such other powers be conferred upon the Company and such other provisions be made as are in this Act more particularly set forth :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PRELIMINARY.

Short title. 1. This Act may be cited as the Cheltenham District Traction Act 1929.

Citation of Acts. 2. The Cheltenham and District Light Railway Orders 1900 to 1904 and this Act may be cited together as the Cheltenham District Traction Acts 1900 to 1929.

Incorporation of Acts. 3. The following Act and parts of an Act are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

The Companies Clauses Consolidation Act 1845 and Part I (relating to cancellation and surrender of shares) and Part II (relating to additional capital) and Part IV (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation. 4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—

“The Order of 1900” “the Extension Order of 1900” “the Order of 1903” and “the Order

of 1904" mean respectively the Cheltenham and District Light Railway Order 1900 the Cheltenham and District Light Railway (Extension) Order 1900 the Cheltenham and District Light Railway (Extension No. 2) Order 1903 and the Cheltenham and District Light Railway (Extension No. 3) Order 1904; A.D. 1929.

"The existing Orders" means the Cheltenham and District Light Railway Orders 1900 to 1904;

"The existing light railways" means the light railways constructed by the Company under the powers of the existing Orders;

"Omnibus" means any stage carriage moved by animal power or by mechanical power (including in that expression electrical and every other motive power not being steam or animal power) obtained from some internal source;

"Omnibus routes" means any routes upon which the Company work and run omnibuses under the section of this Act the marginal note whereof is "Power to run omnibuses";

"Specified routes" means the routes of the existing light railways and the new routes (i) (ii) (iii) and (iv) described in and authorised by the section of this Act the marginal note whereof is "Power to run omnibuses";

"Road authority" means with reference to any road or part of a road over which any proposed omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road;

"The Minister" means the Minister of Transport;

"The directors" and "the secretary" mean respectively the directors and the secretary of the Company.

LIGHT RAILWAYS AND OMNIBUSES.

5.—(1) The Company shall within three years from the passing of this Act or within such extended period as may be allowed by the Minister abandon and discontinue the existing light railways provided that the Company As to abandonment of existing light railways.

A.D. 1929. — shall give to the road authority not less than one month's previous notice of their intention to abandon and discontinue such light railways or any of them or any part thereof.

(2) When the Company have in pursuance of the foregoing provisions of this section abandoned and discontinued the whole or part of any of the existing light railways they may and if required by the road authority shall forthwith take up and remove the rails and paving setts of the light railway or part thereof so abandoned and discontinued and the apparatus and equipment provided or used for the purposes thereof or in connection therewith (hereinafter in this section called "light railway apparatus"):

Provided that the removal of any such rails paving setts and light railway apparatus shall (unless the road authority otherwise previously consent in writing) be carried out in sections each having a maximum length of one-half of a mile (the Company being at liberty to proceed simultaneously with any two or more sections not being contiguous sections) and that until the road upon any such section shall have been restored under the provisions of subsection (3) of this section the removal of any such rails paving setts and light railway apparatus on any other section within one-half of a mile shall not be commenced.

(3) On the taking up and removal of any such rails paving setts or light railway apparatus the Company shall (except where the rails paving setts or apparatus are not situate in a road dedicated to public use) with all convenient speed and in all cases within six weeks (unless the road authority otherwise consent in writing) fill in the ground and make good the surface and to the satisfaction of the road authority restore the portion of road upon which such rails paving setts and light railway apparatus were laid or placed to as good a condition as that in which it was before the rails paving setts and light railway apparatus were laid or placed thereon and shall clear away all surplus paving or metalling material or rubbish occasioned by such work and they shall cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night until such filling in making good restoration and clearing away as aforesaid has been completed or (in cases where

the works necessary for the restoration are done by the road authority under the provisions of the proviso to this subsection) until the removal of such rails paving setts and light railway apparatus has been completed : A.D. 1929.

Provided that the road authority (if they think fit) may within one month after the service upon them of the notice referred to in subsection (1) of this section give notice to the Company that they desire themselves to do the works necessary for the restoration of the road and the Company shall in lieu of carrying out the said works pay to the road authority in respect of the light railway or part thereof to be abandoned by the Company a sum calculated on the basis of five shillings and six pence per superficial yard of the portion of road so to be restored which the Company are at the date of the passing of this Act liable to maintain such sum to be paid in respect of any portion of road as and when the restoration thereof is completed.

(4) As from the date on which the Company abandon and discontinue the whole or any part of any of the existing light railways in pursuance of the foregoing provisions of this section they shall cease to be under any obligation to use the same or to run carriages thereon or to maintain or repair any part of the roadway or land in which the same is situate.

(5) Notwithstanding anything in the foregoing provisions of this section the following provisions shall have effect :—

- (a) The Company may with the approval of the road authority concerned leave in the roadway all or any part of such rails paving setts and light railway apparatus ;
- (b) If at any time before or within one month after the date of abandonment any of the local authorities shall give notice to the Company that they desire for the purpose of supplying electricity or of supporting any overhead wires or cables or for any other purpose that any of the overhead equipment on any road or footpath in their district shall not be removed by the Company then the Company shall sell and the local authority giving the notice shall purchase the overhead equipment to which the

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notice relates on terms to be agreed between the local authority and the Company, or failing agreement to be determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Electrical Engineers and the provisions of the Arbitration Act 1889 shall apply to any reference to an arbitrator under this subsection;

- (c) If any rails paving setts and light railway apparatus be left in any roadway by agreement with the road authority under paragraph (a) of subsection (5) of this section or if any part of the overhead equipment be purchased by any of the local authorities under paragraph (b) of the said subsection (5) then as from the date of such agreement or of such purchase as the case may be any and every obligation or liability imposed on the Company by the existing Orders or this Act or any other Act other than the obligation imposed upon the Company to make the payment to the road authority referred to in the proviso to subsection (3) of this section or any agreement or instrument whatsoever with respect to the maintenance or the taking up and removal of or otherwise relating to such rails paving setts and light railway apparatus or equipment (as the case may be) shall cease and the provisions of the existing Orders and of the Acts incorporated therewith shall cease to apply thereto.

Power
to run
omnibuses.

6.—(1) The Company may provide maintain work and run omnibuses—

- (a) In the borough of Cheltenham the urban district of Charlton Kings and the rural districts of Cheltenham and Winchcomb along the routes of all or any of the existing light railways; and
- (b) Along the following routes (that is to say):—
In the borough of Cheltenham—
(i) commencing in Gloucester Road at the terminus of the existing light railway and proceeding along that road to its junction with Tennyson Road and thence

along Tennyson Road and Libertus Road and terminating at the junction of Libertus Road and Gloucester Road; A.D. 1929.

(ii) commencing at the junction of Gloucester Road and St. Georges Road and proceeding in a north-easterly direction along Gloucester Road to its junction with Tewkesbury Road and High Street thence along High Street and terminating at the junction of High Street and St. Georges Square;

(iii) commencing at the junction of High Street and Old Bath Road and proceeding along Old Bath Road to its junction with Leckhampton Road thence along Leckhampton Road to the terminus of the existing light railways.

In the borough of Cheltenham and urban district of Charlton Kings—

(iv) commencing in the borough of Cheltenham at the borough and urban district boundary at the junction of High Street London Road and Cudnall Street (or Old London Road) and proceeding in a south-easterly direction along Cudnall Street to the junction of that street and Cirencester Road thence along Cirencester Road and terminating in the urban district of Charlton Kings at the junction of Cirencester Road and Lyefield Road West; and

(c) With the consent of the local and road authorities which consent shall not be unreasonably withheld along any other routes in the borough of Cheltenham the urban district of Charlton Kings and the parishes of Prestbury Southam and Brockhampton and Woodmancote.

(2) The Town Police Clauses Acts 1847 and 1889 shall subject to the provisions of this Act apply to any omnibus supplied or used under this section.

(3) The powers of this section shall be exerciseable by the Company subject to such byelaws as the licensing authority or licensing authorities of the borough district

A.D. 1929. or districts in which such omnibuses may be run are now or may hereafter be empowered to make and enforce with reference to omnibuses.

(4) The Company may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running maintenance and equipment of the omnibuses provided by the Company under this Act.

(5) The Company may make byelaws for regulating the travelling in or upon such omnibuses and for the prevention of nuisances in or upon the same or in or against any premises held by the Company in connection therewith.

(6) Any omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphic line (as defined by the Telegraph Act 1878) of the Postmaster-General.

(7) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Company as if they were carriages used on tramways.

(8) The Company shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

Fares and
charges for
passengers.

7. The Company may demand and take for every passenger conveyed on the omnibuses including every expense incidental to such conveyance a fare or charge not exceeding one penny halfpenny per mile and in computing the said fare or charge any fraction of a mile shall be deemed a mile. Provided that the Company may appoint stages each of not less than half a mile in length and may demand and take for every passenger travelling on the omnibuses including every expense incidental to the conveyance of such passenger any fares or charges not exceeding one penny halfpenny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed to be a stage.

Passengers'
luggage.

8. Every passenger conveyed on the omnibuses may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such

luggage shall be carried by hand and shall not occupy any part of a seat required for a passenger nor be of a form or description to annoy or inconvenience other passengers. A.D. 1929.
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9.—(1) The Company may if they think fit convey on the omnibuses parcels not exceeding one hundred and twelve pounds in weight and dogs whether in the care of passengers or otherwise. Parcels &c.

(2) The Company may demand and take for the conveyance of any dog a sum not exceeding the fare payable by a passenger travelling between the same stage points and for parcels (other than passengers' luggage referred to in the immediately preceding section of this Act) carried in the omnibuses charges not exceeding such maximum charges as may from time to time be approved by the Minister.

10. If at any time after two years from the opening for public traffic of any omnibus route or after two years from the date of any order made in pursuance of this section in respect of the omnibus routes or any portion thereof it is represented in writing to the Minister by the local authority of the district in which the omnibus routes or such portion is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Company that all or any of the fares or other charges demanded and taken in respect of the traffic on the omnibus routes or on such portion should be revised the Minister may (if he thinks fit) direct an inquiry and if the person holding the inquiry reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the Minister may by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the omnibus routes or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Minister made in pursuance of this section. Periodical revision of fares and charges.

11.—(1) The Company after the opening of any omnibus route shall and they are hereby required to run a proper and sufficient service of omnibuses thereon for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the Service for labouring classes.

A.D. 1929. — evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one penny for every mile or fraction of that distance. On Saturdays the Company in lieu of running such omnibuses after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Minister that such proper and sufficient service is not provided the Minister after considering the circumstances of the locality may by order direct the Company to provide such service as may appear to him to be reasonable.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

List of
fares &c.
to be
exhibited.

12. A list of the fares and charges by this Act authorised to be demanded and taken in respect of traffic on the omnibuses shall be exhibited in a conspicuous place inside each of the omnibuses.

As to fares
on Sun-
days or
holidays.

13. It shall not be lawful for the Company in respect of any omnibus route to take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary week days.

Restricting
running of
omnibuses
in com-
petition.

14.—(1) If and so long as the service or services of transport provided by the Company along any of the specified routes adequately meets the requirements of such route it shall not be lawful except as hereinafter in this section provided for any company local authority body or person except the Company or a railway company in pursuance of their statutory powers to run omnibuses along such route or along any other route in competition with such service or services of the Company.

(2) Any failure on the part of the Company to afford an adequate service along any such route which is due to strikes or unforeseen accidents or circumstances beyond the control of the Company shall not entitle any such company authority body or person to run omnibuses along such route or along any other route in competition therewith.

(3) The licensing authority of the borough or district in which any such route or part thereof is situate may

and shall in order to give effect to the foregoing provisions of this section when licensing an omnibus to ply for hire grant such licence subject to conditions as to the routes upon which such omnibus shall or shall not ply for hire Provided that if any question arises between the Company and any company authority body or person as to whether any route in respect of which a licence may be granted to any such company authority body or person is competitive such question shall on the application of either of the parties be determined as hereinafter in this section provided Provided further that the right of the applicant for the licence of appeal to the Minister from the decision of the licensing authority under section 14 (3) of the Roads Act 1920 shall not be affected but the Minister in making any order under that section shall have regard to the provisions of this section. A.D. 1929.

(4) Any question at any time arising as to whether or not the Company are providing an adequate service along any route or whether there is or would be any such competition shall be determined by the Minister and the Minister shall have power to make such order thereon as he thinks fit Any order made by the Minister under this section shall be final and binding and not subject to appeal to any court and shall on the application of the Minister be enforceable by writ of mandamus.

(5) Nothing in this section shall be deemed to restrict the running of any omnibus by any such company authority body or person along any of the specified routes or any other route in competition therewith if such omnibus serves districts beyond the districts in which the specified routes are situate and no passenger conveyed by such omnibus is both taken up and set down on any one journey on any of the specified routes or any route in competition therewith or prevent the grant of a licence to ply for hire with an omnibus on the condition that no passenger conveyed by the omnibus to which the licence relates shall be both taken up and set down on any one journey on any of the specified routes or any route in competition therewith.

15. The following sections of the existing Orders shall so far as the same are applicable extend and apply to the omnibuses of the Company and to the omnibus routes and to the Company in respect of the undertaking authorised by this Act in as full and complete a manner Application of certain provisions of existing Orders.

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District Traction Act, 1929.

A.D. 1929. — as if the said sections (with all necessary alterations and with the substitution of the words “Minister of Transport” for the words “Board of Trade” and of the words “Tramways Act 1870” for the words “principal Act”) were re-enacted in this Act (that is to say) :—

The Order of 1900—

- Section 72 (Payment of rates and charges);
- Section 81 (Company not to create debenture stock);
- Section 82 (Mortgages to comprise purchase money paid on sale to purchasing authority);
- Section 83 (Endorsement of notice of future purchase by purchasing authority);
- Section 85 (Interest on calls not to be paid out of capital);
- Section 86 (Deposits not to be paid for out of capital);
- Section 89 (Purchasing authorities) as amended by subsection (2) of section 4 of the Order of 1903;
- Section 101 (Form and delivery of notices).

The Order of 1903—

- Section 18 (Winding up of Company on sale of whole undertaking).

Power to purchase lands.

16. The Company may purchase by agreement take on lease and hold lands and buildings and may erect on any such lands depôts buildings and sheds for the purposes of their omnibuses. Provided that the Company shall not create or permit any nuisance on any such lands.

Conveyance of mails.

17. The Company shall perform in respect of their omnibuses such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act relates.

Shelters or waiting-rooms.

18. The Company may erect and maintain sheds shelters or waiting-rooms and gangways for the accommodation of passengers on any omnibus route established under the authority of this Act and may with the consent

of the local authority and road authority use for that purpose portions of the public streets or roads. A.D. 1929.

19. For the better regulation of persons desiring to travel in the omnibuses of the Company the Company may make byelaws requiring persons waiting to enter any of their omnibuses at any stopping place or terminus to wait in lines or queues and to enter such omnibuses in the order in which they stood in such line or queue and in the event of the Company making any such byelaws they may erect and maintain barriers and posts at any stopping place or terminus and for that purpose may with the consent of the road authority use part of a public street or road. Power to require intending passengers to wait in lines or queues.

20. The Company may appoint the stations and places from which the omnibuses of the Company shall start or at which they may stop for the purposes of taking up or setting down passengers and may make regulations for fixing the time during which such omnibuses shall be allowed to remain at any such place : Stopping and starting places.

Provided that any starting or stopping station or place appointed by the Company under this section and any regulations made by the Company thereunder for fixing the time during which omnibuses shall be allowed to remain at any starting or stopping station or place shall be subject to the previous approval of the road authority which approval shall not be unreasonably withheld.

21. The Company may run through omnibuses along any route on which the Company are for the time being authorised to run omnibuses and such omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Company and they may demand and take for every passenger by such omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such omnibus Provided that during the running of such through omnibuses the Company shall maintain a reasonably sufficient ordinary service of omnibuses. Through omnibuses.

22.—(1) Notwithstanding anything contained in this Act or any other Act or Order to the contrary the Company may on any occasion run and reserve omnibuses Power to reserve omnibuses for special purposes.

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on any route on which the Company are for the time being authorised to run omnibuses for any special purpose which the Company may consider necessary or desirable. Provided that such special omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Company and that during the running of such special omnibuses the Company shall maintain a reasonably sufficient ordinary service of omnibuses.

(2) The Company may make byelaws for prohibiting the use of any such omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this Act or any other Act or Order as to fares or charges for passengers shall not extend to any omnibus run for special purposes and in respect thereof the Company may demand and take such fares or charges as they shall think fit.

Attach-
ment of
signs
indicating
stopping
places.

23.—(1) The Company may attach to any lamp-post pole standard or similar erection erected on or in the highway of or near to any of the omnibus routes signs or directions indicating the position of stopping places for omnibuses. Provided that in cases where the Company are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Company shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Company shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Company shall not attach any such sign or direction to any lamp-post pole standard or similar erection belonging to any local authority county council

or railway company without the consent in writing of the authority council or railway company. A.D. 1929.

24. The Company may provide cloak-rooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them in connection with their omnibus undertaking and at suitable places on any of the omnibus routes and the Company may make charges for the use of such cloak-rooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein but shall not use for the purpose any part of the highway without the consent of the local authority and the road authority. Cloak-rooms &c.

25. Any property found in any omnibus of the Company or in any shelter or waiting-room in connection with their omnibus undertaking shall forthwith be handed to the conductor of the vehicle or be taken to the head office of the Company and if not claimed within six months after the finding thereof the property may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks. Lost property.

26. Notwithstanding anything in the existing Orders or this Act or any provisions of the Tramways Act 1870 incorporated with those Orders or this Act or any of them the following provisions shall (unless otherwise agreed between the Company and the purchasing authorities) have effect with reference to the purchase by the purchasing authorities of the undertaking of the Company authorised by the existing Orders and this Act (hereinafter in this section referred to as "the undertaking") :— Power to purchasing authorities to purchase undertaking.

- (1) Subject as hereinafter provided it shall be lawful for the purchasing authorities if by resolution passed at a special meeting of each of the purchasing authorities they so decide to purchase on the thirty-first day of December one thousand nine hundred and thirty-one or the thirty-first day of December one thousand nine hundred and fifty or the thirty-first day of December in every subsequent seventh year (but at no other date) so much of the undertaking as is situate within their respective districts

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upon terms of paying the fair market value of such portion of the undertaking as a going concern but without any addition in respect of compulsory purchase which value shall be determined in case of difference by arbitration in manner provided by this section :

- (2) The powers of compulsory purchase conferred on the purchasing authorities by this section shall be exerciseable only upon and subject to the following terms and conditions (that is to say) :—

(a) The Company shall not be required to sell any part of the undertaking unless each of the purchasing authorities purchases at one and the same time the portion of the undertaking in their district ;

(b) if the purchasing authorities decide to purchase the undertaking they shall give to the Company notice in writing of such their decision not later than the thirty-first day of December in the year preceding the date of purchase ;

(c) the sum to be paid to the Company in respect of such purchase shall if not agreed be determined by one and the same referee nominated under section 43 of the Tramways Act 1870 and in one and the same proceeding but the said referee shall by his award determine separately as respects each of the purchasing authorities the value of the undertaking situate in the district of that purchasing authority including all lands buildings works materials and plant of the Company suitable to and used by them for the purposes of the undertaking within such district ;

(d) the respective sums to be paid to the Company by each of the purchasing authorities shall together be equal to the fair market value of the undertaking as a going concern :

- (3) Subject to the foregoing provisions of this section the said section 43 of the Tramways Act 1870 including the provisions of that section

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with regard to the transfer to vesting in and exercise by the purchasing authority of the rights powers and authorities of the promoters in respect of the undertaking sold the payment of the purchase money and all expenses incurred in the purchase and the borrowing of money for the purposes thereof shall apply to the purchase of the undertaking by the purchasing authorities under this section as if the said section 43 with any necessary modifications were re-enacted in this Act and as if the purchasing authorities were the local authority within the meaning of that section and in the application of the said section 43 to the county council of the county of Gloucester the local rate shall be the county fund :

- (4) On any sale to the purchasing authorities such arrangements as may be approved by the Minister shall be made for vesting in each purchasing authority the portion of the undertaking situate in their district and for a scheme or schemes for the future maintenance management and working of the undertaking and the sale shall not take effect until an instrument has been properly executed in a form approved by the Minister for carrying into effect such arrangements :
- (5) After the completion of the purchase of the undertaking by the purchasing authorities the powers of the Company under this Act to provide maintain work or run omnibuses in the districts of the purchasing authorities shall cease and the provisions of the section of this Act whereof the marginal note is " Restricting running of omnibuses in competition " shall inure for the protection of the purchasing authorities in respect of the portion of the undertaking of the Company purchased by them.

27. The Company shall not exercise the powers of the sections of this Act of which the marginal notes are " Shelters or waiting-rooms " " Power to require intending passengers to wait in lines or queues " " Stopping and starting places " and " Cloak-rooms &c." upon any

For protection of railway companies.

A.D. 1929. road or bridge belonging to or maintained by or at the expense of any railway company or so as to obstruct the convenient access to or exit from any railway station depôt or property.

Saving for
railway
companies.

28. Nothing contained in this Act shall impose any obligation upon or enlarge any existing obligation of a railway company to strengthen adapt alter or reconstruct any bridge or road maintainable by them.

Working
and other
agree-
ments.

29.—(1) The Company on the one hand and any local authority empowered to run omnibuses in any borough or district in or adjacent to which the Company are for the time being empowered to run omnibuses on the other hand may enter into and carry into effect agreements for the working user management and maintenance of all or any of the omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts and Orders under which such omnibus services are authorised.

(2) The Company and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Act of any omnibus services which the Company are empowered to provide.

(3) Any agreement under subsection (1) or (2) of this section may provide for all or any of the following purposes (that is to say):—

(a) The working user management and maintenance of any omnibuses lands depôts buildings sheds and property provided in connection with any such omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services;

(b) The supply by any of the contracting parties under and during the continuance of any such agreement under this section of omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants;

(c) The interchange accommodation conveyance transmission and delivery of traffic arising on

or coming from or destined for any omnibus service of the contracting parties; A.D. 1929.

- (d) The payment collection and apportionment of the fares and charges and other receipts and the division of the profits arising from any such omnibus service as aforesaid.

(4) Nothing in this section or in any agreement made in pursuance of this section shall authorise any local authority to run omnibuses except—

- (a) upon routes along which the local authority have powers under or in pursuance of an Act or Order to provide omnibus services; and
 (b) subject to any statutory limitations restrictions or obligations imposed on the local authority in respect of the exercise of such powers.

30. The Company may manufacture purchase provide and hire omnibuses and all apparatus and things which may be necessary for or incidental to the working of omnibuses and the exercise of the powers conferred on the Company by this Act but nothing in this Act shall entitle the Company to manufacture chassis. Power to provide vehicles and equipment.

31. The Company may acquire and hold patent and other rights and licences (not being exclusive) in relation to the manufacture of omnibuses. Power to hold patent rights.

CHANGE OF NAME

32. The name of the Company shall be the Cheltenham District Traction Company. Change of name.

ADDITIONAL CAPITAL

33. The Company may subject to the provisions of Part II of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole twenty-two thousand pounds nominal capital by the issue at their option of new ordinary shares or stock or preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than one pound nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth Power to raise additional capital.

A.D. 1929. — of the amount of the share shall have been paid in respect thereof.

New
ordinary
shares to
be subject
to same
incidents
as existing
shares.

34. Any new ordinary shares created by the Company under this Act and the holders of such new ordinary shares respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as if the capital represented by the new ordinary shares were part of the now existing ordinary capital of the Company of the same class or description and the new ordinary shares were shares in that capital.

Dividends
&c. on
preference
shares.

35.—(1) The Company may notwithstanding anything contained in the existing Orders provide that any preference shares created under the powers of the Orders of 1900 to 1904 and this Act shall be entitled to a cumulative preferential dividend not exceeding the rate of eight pounds per centum per annum and that if the profits of any year are not sufficient to pay such dividend the deficiency shall be made good out of any funds of the Company which may be available for that purpose or out of the profits of any subsequent year.

(2) Such preference shares may from time to time be issued by the Company with such rights of priority and other rights in the distribution of the assets of the Company as the Company may think fit (including the right of repayment of the amount of preference capital at the time issued and paid up and of any arrears or deficiency of dividend thereon in priority to the ordinary share capital) and the Company may provide that when the holders of such preference shares shall have received repayment in full of the amounts paid up by them and of any arrears or deficiency in the dividend which should have been paid to them thereon they shall not in respect of such shares be entitled to any further participation in the assets of the Company.

(3) The Company may on such terms and conditions as they think fit form and maintain special sinking contingency or reserve funds for the purpose of securing the repayment in any distribution of the assets of the Company of any issue of preference shares of the Company and of the payment of any deficiency or arrears of dividend thereon and may provide for yearly or other payments out of profits into such funds and for the

application thereof to the payment of dividends on such issue of preference shares and to the purchase of such preference shares or of other securities or otherwise and for the final distribution of such funds and they may appoint trustees to receive hold manage and apply such funds all on such terms and conditions and with such powers and immunities as the Company may prescribe. A.D. 1929.
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(4) The terms and conditions on which any preference shares are issued shall be clearly stated on the certificates of such shares.

36. The additional capital authorised by this Act shall form part of the capital of the Company. Additional capital to form part of capital of Company.

37.—(1) The directors may without any further or other authority than is given by this section in respect of the capital already raised or created by the issue of shares under the existing Orders borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of thirty thousand pounds raised up to the thirty-first day of December one thousand nine hundred and twenty-eight) the sum of forty-eight thousand pounds. Power to borrow in respect of authorised and additional capital.

(2) The Company may also in respect of the capital authorised by the existing Orders and not already raised by the issue of shares and of the additional capital authorised by this Act from time to time borrow on mortgage of the undertaking any sum or sums not exceeding one-half of the nominal amount of such capital for the time being raised and upon which not less than one-half part thereof has been paid up but no sum shall be borrowed or raised in respect of any such capital until the Company have proved to the justice before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that not less than one-half of the amount of each of the shares in respect of which the Company propose to borrow or raise money has been paid on account thereof and that such shares were issued bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company or of such other evidence as he shall think sufficient he shall grant a certificate that

A.D. 1929. — the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

As to
disposal
of shares
&c.

38. Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 the Company may in issuing any portion of the additional capital or any securities authorised by this Act dispose of all or any of the shares representing such capital or such securities at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

Appoint-
ment of
receiver.

39. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Applica-
tion of
moneys.

40. All moneys raised under this Act whether by shares or borrowing shall be applied only to the purposes of this Act and to the general purposes of the undertaking being in every case purposes to which capital is properly applicable and the Company may apply to the purposes of this Act any moneys which they have raised under the existing Orders and which may not be required for the purposes of the existing Orders.

MEETINGS DIRECTORS &c.

Notice of
meetings.

41. Any meeting of the Company whether ordinary or extraordinary may be convened by notice delivered at or sent by post to the registered address or other known address of each proprietor of the Company. Provided that the notice if delivered shall be delivered at such address as aforesaid not less than six clear days or if sent by post shall be prepaid and posted not less than seven clear days before the date of the meeting. In proving that any such notice has been sent by post it shall be sufficient to prove that the notice was properly addressed and put into the post and prepaid not later than the time hereby prescribed.

42.—(1) At all general meetings of the Company whether ordinary or extraordinary every holder of ordinary shares shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each one pound ordinary share held by him. Provided always that no shareholder shall be entitled to vote at any meeting in respect of any share on which any call remains unpaid. A.D. 1929.
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Voting.

(2) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any share to which a preferential dividend shall be assigned.

43. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract. Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by the way of indemnity. As to qualification of directors.

44. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company fourteen days at least before the day of election. Notice of candidature for office of director.

A.D. 1929.

Quorum of
directors.

45. The quorum of a meeting of directors shall be two when the total number of directors does not exceed five and three when the total number of directors exceeds five.

Continuing
directors.

46. The continuing directors may act notwithstanding any vacancy in their body but so that if at any time the number of the directors shall be less than the minimum number prescribed by the Order of 1900 the directors shall not act as such except for the purpose of filling vacancies among the directors and allotting shares to any proposed director or directors.

Managing
directors.

47.—(1) The directors may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director while holding that office shall not be subject to retirement by rotation nor be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) Subject to any directions which may be given in general meeting the remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exercisable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Quorum of
general
meetings.

48. The quorum of a general meeting of the Company whether ordinary or extraordinary shall be five shareholders present in person or by proxy holding together not less than one-twentieth part of the capital of the Company for the time being issued.

Annual
meeting.

49. The ordinary general meeting of the Company shall be held in each year at such time and place as the directors may from time to time appoint.

50. If and so long as the ordinary meetings of the Company shall be held once in each year the following provisions shall have effect :—

A.D. 1929.

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Interim
dividends
and annual
accounts.

- (a) It shall be lawful for the directors to declare and pay in any year an interim dividend half-yearly out of the profits of the Company without the sanction or direction of a general meeting ;
- (b) The Company and the directors shall not be required to make up a half-yearly balance sheet and accounts and the balance sheet and accounts made up by them in accordance with section 116 of the Companies Clauses Consolidation Act 1845 shall relate to the transactions of the Company in the course of the preceding year.

51. Section 95 of the Companies Clauses Consolidation Act 1845 shall be deemed to authorise the directors to appoint any one or more of their body as a committee for the purpose of passing transfers and sealing certificates of any shares stock or other securities of the Company and of executing any minor powers exerciseable by the directors.

Committee
of directors.

52.—(1) The directors may close the register of transfers of shares for a period not exceeding fourteen days previous to the payment of any dividend and they may close the register of transfers of mortgages for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of any such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper published in the county of London.

Closing of
transfer
books.

(2) Any transfer of shares or mortgages made during the time when the register of transfers of such security is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the payment of any such dividend or the payment of any such interest as the case may be.

53. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be necessary to authenticate the register of the shareholders of the

As to
share-
holders'
register.

A.D. 1929. Company by affixing the common seal of the Company to such register.

As to
contracts.

54. Notwithstanding anything in any Act relating to the Company any contract or agreement required to be in writing and not under seal may be signed on behalf of the Company by the secretary or other person appointed in that behalf by the directors.

Remunera-
tion of
secretary
and
auditors.

55. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors of the Company.

Auditors.

56.—(1) The Company shall annually appoint one person or two persons or a firm of accountants to be the auditor or auditors of the Company and such person or persons or the members of such firm shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Minister.

(2) It shall not be necessary for any auditor to hold any shares or stock in the capital of the Company.

MISCELLANEOUS.

Consents of
local or
road
authority.

57. Where the consent or approval of any local or road authority is by this Act required before the exercise of any powers by the Company and it is provided that such consent or approval shall not be unreasonably withheld any difference as to whether such consent or approval is unreasonably withheld shall be determined by the Minister.

Orders &c.
of Minister.

58. All orders regulations and byelaws made by the Minister under the authority of this Act shall be signed by a secretary or an assistant secretary of the Ministry of Transport.

As to
making of
byelaws.

59. Any byelaws made by the Company under this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

Inquiries
by Minister.

60. In respect of the exercise of any powers or duties conferred or imposed on the Minister or the giving by him of any consents under the existing Orders or this

Act the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

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61. The Company shall in every year within three months after the close of their financial year or such longer period as the Minister may allow furnish to the Minister and to the town clerk of Cheltenham a copy of their annual accounts.

Accounts
to be fur-
nished to
Minister.

62. Proceedings for the recovery of any demand made under the authority of this Act or the existing Orders or any subsequent Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery
of demands.

63. Save as otherwise by the existing Orders or this Act expressly provided all offences against the existing Orders and this Act or any incorporated enactment and all penalties forfeitures costs and expenses imposed or recoverable under the existing Orders or this Act or any incorporated enactment or under any byelaw made thereunder respectively may be prosecuted and recovered in a summary manner. Provided that costs or expenses (except such as are recoverable along with a penalty) shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery
of penalties
&c.

64.—(1) The following provisions of the existing Orders are hereby repealed (namely):—

Repeal.

The Order of 1900—

Section 8 (Quorum of directors);

Section 55 (Local authorities and road authorities may use railway for certain purposes);

Section 79 (Power to borrow);

Section 80 (For appointment of a receiver);

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Section 91 (Future purchase of undertaking by purchasing authorities);

Section 99 (Returns and accounts).

The Extension Order of 1900—

Section 9 (Further borrowing powers to the Company);

Section 10 (For appointment of a receiver).

The Order of 1903—

Section 3 (Amendment of Order of 1900 and of Extension Order 1900);

Section 16 (Further borrowing powers to the Company);

Section 17 (As to charging whole undertaking of Company with money borrowed).

(2) As from the date when any of the existing light railways is abandoned and discontinued under the provisions of the section of this Act of which the marginal note is "As to abandonment of existing light railways" sections 31 (Repair of part of road where railway is laid) 36 (Liability of Company to maintain rails &c.) and 37 (Road authority and Company may contract for repairing road on which railway is laid) of the Order of 1900 shall cease to apply to and in respect of the light railway so abandoned and discontinued and to the posts brackets and wires used for supplying motive power to the carriages used thereon and as from the date when all the existing light railways have been so abandoned and discontinued the said sections 31 36 and 37 and any reference to those sections in the existing Orders shall be repealed.

Costs of
Act.

65. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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